

CASE-042

CASE ID: CASE-042.

ADVOCATE: Adv. Sana Shaikh (advocate-004).

PRACTICE AREA: contract.

JURISDICTION: Maharashtra.

COURT: High Court.

PROCEDURAL STAGE: Judgment.

DECIDED ON: 12/09/2020.

FORUM: HIGH COURT OF MAHARASHTRA.

OUTCOME: The contractual rights and obligations were determined and the claim was disposed of accordingly.

MATTER NO.: CASE-042 - contract - Maharashtra.

CASE SUMMARY

Matter No. CASE-042 involving a contract dispute handled by the advocate in Maharashtra. The parties entered into an agreement under which certain obligations were to be performed. One party alleges non-performance and consequential loss.

FACTS

The parties entered into an agreement under which certain obligations were to be performed. One party alleges non-performance and consequential loss.

LEGAL ISSUES

Whether a valid agreement existed; whether the terms were breached; and whether the claimant is entitled to the relief sought, including compensation.

APPLICABLE LAW

The law of contracts governing formation, performance and breach, and the measure of compensation for breach.

EVIDENCE

The written agreement, correspondence between the parties, invoices and the pleadings filed before the court.

ARGUMENTS

It was submitted on behalf of the party that the facts and the applicable law together establish the relief prayed for. The opposing side relied on the material on record in support of its case.

RELIEF SOUGHT

CONTRACTUAL OBLIGATIONS - BREACH AND REMEDIES

OUTCOME

The contractual rights and obligations were determined and the claim was disposed of accordingly.

CASE METADATA

CIVIL SUIT NO. 042/2020.

FORUM: HIGH COURT OF MAHARASHTRA.

DECIDED ON: 12/09/2020.

STATUTES REFERRED: Code of Civil Procedure, 1908; Contract Act, 1872.

SYNTHETIC DEMONSTRATION DATA - NOT A REAL LEGAL CASE
